

26PR00616 10 & 11. Estate of Melinda Boley

County: sonoma

Division: Probate

Hearing date: 2026-08-21

Motion: Petitions for Letters of Administration

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26PR00616

Petitions for Letters of Administration

Tentative Ruling: On May 15, 2026, John Farley filed a petition for letters of administration. He alleged decedent died intestate and that he, as decedent's uncle, was the only heir. The petition was set for hearing on July 2, 2026. Prior to that hearing, no objection to the petition was filed. However, on June 26, 2026, a second petition for letters of administration was filed by Lori Merrill as the nominee of William Boley. That petition alleged decedent died intestate and that William is the half brother of the decedent. The second petition by Merrill, later amended to include the nomination, was set for hearing on August 21, 2026. The Farley petition was procedurally postured to be granted at the July 2, 2026 hearing, however the tentative ruling was to continue it to the present hearing date in light of the competing petition filed. However, no objection was made at or before the initial hearing as required by Probate Code section 1043. The Court questions whether any objection now is waived, or whether petitioner Merrill has legal authority to support the proposition that the competing petition acted as an objection. In addition, on July 2, 2026, when the tentative ruling was adopted, the Court ordered the parties to file statements of issues in accordance with the local rules if their mandated meet and confer efforts did not entirely resolve any dispute. No statements of issues have been filed by any party.

In light of the failure to object to the petition of Mr. Farley, and the complete absence of any update from the parties, the Court is inclined to approve the petition filed May 15, 2026. The Court will therefore issue a tentative ruling consistent with this conclusion. But it is the Court's strong suspicion that it will finally get an update when at least petitioner Merrill requests to appear. But maybe not, if there is no objection to petitioner Farley acting as administrator, only a dispute as to the heir(s). In the absence of compliance with the Court's prior order to timely file statements of issues, the Court is left to guess. Until then, NO APPEARANCES REQUIRED.

The petition filed May 15, 2026 by petitioner Farley is APPROVED, no objection having been filed. Bond in the amount of \$707,000 is required as petitioner is an out of state resident and as there may be a dispute about the intestate heirs of the decedent. Petitioner is to file an Inventory and Appraisal within four months of issuance of letters (Prob. Code section 8800(b)) and either a petition for an order for final distribution of the estate or a report of status of administration within the timeframe set out in Probate Code section 12200.

The matter is SET on the October 21, 2027, probate case management conference calendar at 3:00 p.m. in Department 63 for status of estate or final account and distribution. No appearances at the hearing will be required if the court determines that administration of the estate is timely proceeding, or good cause is shown why more time is required.